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MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of March 15, 2025 ("Effective Date"), by and between:

1. Pinnacle Innovations, Inc., a Delaware corporation with a principal place of business at 4527 Redstone Parkway, Chicago, Illinois 60616 ("Pinnacle Innovations");

and

2. Celestial Dynamics LLC, a limited liability company organized under the laws of Illinois with its principal office at 88 West Harrison Street, Suite 1200, Chicago, Illinois 60605 ("Celestial Dynamics");

Each a "Party" and collectively the "Parties."

RECITALS

WHEREAS, the Parties wish to explore a potential business relationship concerning the development and commercialization of advanced aerospace navigation software ("Purpose"); and

WHEREAS, in connection with the Purpose, it is anticipated that each Party may disclose or make available certain confidential and proprietary information to the other; and

WHEREAS, the Parties desire to protect such confidential information from unauthorized use and disclosure.

NOW, THEREFORE, in consideration of the mutual promises contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

1.1 "Confidential Information" means all written, electronic, oral or other forms of information, materials, or data disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party"), including but not limited to business plans, financial information, technical data, trade secrets, software source code, designs, customer lists, marketing strategies, and prototypes, whether marked as confidential or not, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

1.2 Confidential Information shall not include information that:

- (a) is or becomes publicly known through no breach of this Agreement by the Receiving Party;
- (b) is lawfully received from a third party without restriction on use or disclosure;
- (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information, as evidenced by written records; or
- (d) is disclosed pursuant to a valid court order or applicable law, provided the Receiving Party gives prompt written notice to the Disclosing Party prior to such disclosure and cooperates in any effort to limit or contest such disclosure.

2. OBLIGATIONS OF THE PARTIES

2.1 Each Party agrees:

- (a) to maintain the confidentiality of the other Party's Confidential Information using at least the same degree of care as it uses to protect its own confidential information, but in no event less

than reasonable care;

(b) to use the Confidential Information solely for the Purpose described above;

(c) not to disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party, except to those employees, contractors, or affiliates who have a strict need to know for the Purpose and who are bound by confidentiality obligations at least as restrictive as those in this Agreement;

(d) to promptly notify the Disclosing Party in writing upon discovery of any unauthorized use or disclosure of Confidential Information and to cooperate in any remedial measures reasonably requested by the Disclosing Party.

2.2 Each Party shall return or destroy all tangible embodiments of the other Party's Confidential Information, including copies, within sixty (60) days after the Parties agree that the Purpose has been completed or the Parties otherwise agree in writing that the obligation to maintain confidentiality with respect to such information should cease, except as otherwise provided herein.

3. TERM AND NO TERMINATION FOR CONVENIENCE

3.1 This Agreement shall commence on the Effective Date and shall continue in full force and effect for a period of three (3) years thereafter, expiring on March 15, 2028, unless earlier terminated as provided in Section 3.2.

3.2 Notwithstanding anything to the contrary, this Agreement may only be terminated:

(a) by mutual written consent of the Parties; or

(b) upon material breach by one Party of its obligations hereunder, provided the non-breaching Party gives written notice describing the breach and the breaching Party fails to cure such breach within thirty (30) days after receipt of such notice.

3.3 Notwithstanding expiration or termination of this Agreement, the obligations set forth in Section 2 with respect to Confidential Information disclosed during the term of this Agreement shall survive for a period of five (5) years from the date of such expiration or termination.

4. NO LICENSE OR OTHER RIGHTS

4.1 Nothing in this Agreement grants the Receiving Party any right, title, or interest in or to the Disclosing Party's Confidential Information, except for the limited right to use such Confidential Information for the Purpose.

4.2 Neither Party shall reverse engineer, decompile, or disassemble any prototypes, software, or other tangible Confidential Information disclosed except as expressly authorized in writing.

5. REPRESENTATIONS AND WARRANTIES

Each Party represents and warrants that it has the full right, power, and authority to enter into this Agreement and that its execution and performance will not conflict with or violate any agreement with any third party.

6. REMEDIES

6.1 Each Party acknowledges that any unauthorized use or disclosure of Confidential Information may cause irreparable harm to the Disclosing Party for which monetary damages may be inadequate.

6.2 Accordingly, the Disclosing Party shall be entitled to seek injunctive relief and any other remedies available at law or in equity without the requirement to post bond or prove actual damages, in addition to any other rights and remedies.

7. MISCELLANEOUS

7.1 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois, without giving effect to its conflict of laws principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in Cook County, Illinois.

7.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter and supersedes all prior or contemporaneous understandings, agreements, or representations, written or oral.

7.3 Amendments. No modification or amendment of this Agreement shall be effective unless in writing and signed by authorized representatives of both Parties.

7.4 Waiver. No waiver of any breach or default hereunder shall be deemed a waiver of any subsequent breach or default.

7.5 Assignment. Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party, except to a successor entity in connection with a merger or acquisition.

7.6 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

7.7 Notices. All notices required or permitted hereunder shall be in writing and shall be deemed given (i) upon personal delivery, (ii) three (3) business days after deposit with a nationally recognized courier service, or (iii) upon confirmed electronic mail transmission, addressed as follows (or to such other address as either Party may specify in writing):

If to Pinnacle Innovations:

Attn: General Counsel
4527 Redstone Parkway
Chicago, Illinois 60616
Email: legal@pinnacleinnov.com

If to Celestial Dynamics:

Attn: Chief Operating Officer
88 West Harrison Street, Suite 1200
Chicago, Illinois 60605
Email: operations@celestialdyn.com

IN WITNESS WHEREOF, the Parties have caused this Mutual Non-Disclosure Agreement to be executed as of the Effective Date by their duly authorized representatives.

Pinnacle Innovations, Inc.

Celestial Dynamics LLC

By: _____ By: _____

Name: Jonathan F. Mercer

Name: Elaine R. Navarro

Title: Chief Executive Officer

Title: Managing Member

Date: March 15, 2025

Date: March 15, 2025

CERTIFICATION

I, the undersigned, hereby certify that I have the authority to execute this Agreement on behalf of Pinnacle Innovations, Inc.

Signature: _____

Name: Jonathan F. Mercer

Date: March 15, 2025

CERTIFICATION

I, the undersigned, hereby certify that I have the authority to execute this Agreement on behalf of Celestial Dynamics LLC.

Signature: _____

Name: Elaine R. Navarro

Date: March 15, 2025

Case Number Reference (for internal use): 2025-MNDA-CHI-0874